

MUTUAL NDA - INNOTECH SOLUTIONS PVT LTD

Contract Type: Nda

Between

Acme Manufacturing Pvt Ltd

(hereinafter referred to as the "Company")

And

InnoTech Solutions Pvt Ltd

(hereinafter referred to as the "Counterparty")

Dated: 15 January 2025

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RECITALS

WHEREAS, Acme Manufacturing Pvt Ltd (the 'Company') is a company incorporated under the laws of India, engaged in the business of manufacturing and technology services;

WHEREAS, InnoTech Solutions Pvt Ltd (the 'Counterparty') is a company/person engaged in providing goods and/or services relevant to the Company's business operations;

WHEREAS, the Company desires to engage the Counterparty for the provision of certain goods and/or services, and the Counterparty desires to provide such goods and/or services to the Company, all on the terms and conditions set forth herein;

WHEREAS, the Parties wish to set forth their respective rights, obligations, and responsibilities in connection with the engagement;

NOW, THEREFORE, in consideration of the mutual covenants, promises, and agreements set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

ARTICLE 1

DEFINITIONS AND INTERPRETATION

Unless the context otherwise requires, the following terms shall have the meanings set forth below:

"Affiliate"

means any entity that directly or indirectly Controls, is Controlled by, or is under common Control with a Party. For the purposes of this definition, 'Control' means the ownership of more than fifty percent (50%) of the voting share capital of the relevant entity or the legal power to direct or cause the direction of the general management and policies of the relevant entity, whether through the ownership of voting securities, by contract, or otherwise.

"Applicable Law"

means all laws, statutes, regulations, ordinances, rules, codes, guidelines, orders, decrees, judgments, injunctions, writs, or other legal requirements of any governmental authority having jurisdiction over the Parties, including but not limited to the Indian Contract Act, 1872, the Information Technology Act, 2000, the Digital Personal Data Protection Act, 2023, the Arbitration and Conciliation Act, 1996, and all rules, regulations, notifications, and circulars issued thereunder, as amended from time to time.

"Business Day"

means any day other than a Saturday, Sunday, or any day on which banks are authorised or required to be closed in Mumbai, India.

"Confidential Information"

means all non-public, proprietary, or confidential information disclosed by either Party (the 'Disclosing Party') to the other Party (the 'Receiving Party'), whether orally, in writing, electronically, or by any other means, including but not limited to technical data, know-how, research, product plans, software code, algorithms, customer lists, pricing information, financial data, marketing strategies, business processes, and any other information designated as confidential at the time of disclosure or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure.

"Data Breach"

means any unauthorised access, acquisition, use, disclosure, modification, or destruction of Personal Data, or any other breach of security safeguards that compromises the confidentiality, integrity, or availability of Personal Data, whether accidental or deliberate, including any incident that results in the unauthorised disclosure of Personal Data to any third party.

"Effective Date"

means the date first written above, or such other date as the Parties may agree in writing.

"Force Majeure Event"

means any event beyond the reasonable control of a Party, including but not limited to acts of God, war, terrorism, riots, embargoes, acts of civil or military authorities, fire, floods, accidents, strikes, epidemics, pandemics, quarantine restrictions, shortages of labour or materials, failure of utilities or transportation, failure of internet service providers, hacking, denial of service attacks, or other cyber incidents, governmental actions, or any other cause beyond the reasonable control of the affected Party.

"Intellectual Property Rights"

means all patents, patent applications, copyrights, trademarks, service marks, trade names, domain names, rights in designs, rights in computer software, database rights, rights in confidential information (including know-how and trade secrets), and any other intellectual property rights, in each case whether registered or unregistered, and including all applications for, and renewals or extensions of, such rights, and all similar or equivalent rights or forms of protection which subsist or will subsist now or in the future in any part of the world.

"Personal Data"

means any information relating to an identified or identifiable natural person ('Data

Principal'), including but not limited to name, address, email address, phone number, government identification numbers (such as PAN, Aadhaar, passport number), financial information, biometric data, genetic data, and any other data as defined under the Digital Personal Data Protection Act, 2023.

"Services"

means the services to be performed by the Counterparty as described in this Agreement, the Statement of Work, and any other documents incorporated by reference herein.

"Term"

means the period commencing on the Effective Date and continuing until the expiration or termination of this Agreement in accordance with its terms.

"Third Party"

means any person or entity other than the Parties and their respective Affiliates.

"Working Day"

means a day (other than a Saturday or Sunday) on which banks are open for general business in Mumbai, India.

In this Agreement, unless the context otherwise requires: (a) words denoting the singular shall include the plural and vice versa; (b) words denoting any gender shall include all genders; (c) references to 'writing' or 'written' include any mode of reproducing words in a legible and non-transitory form; (d) references to 'days' are to calendar days unless expressly stated to be Business Days; (e) the words 'include', 'including', and 'in particular' shall be construed as being by way of illustration or emphasis only and shall not be construed as limiting the generality of any preceding words; and (f) any reference to a statute, statutory provision, or subordinate legislation is a reference to it as it is in force from time to time, taking account of any amendment, extension, or re-enactment.

ARTICLE 2

SCOPE AND PURPOSE

This is a test NDA agreement for demonstration purposes.

ARTICLE 3

OBLIGATIONS OF THE PARTIES

3.1. Company Obligations

The Company shall: (a) provide the Counterparty with all necessary information, access, and cooperation reasonably required for the performance of the Services; (b) designate a representative who shall be the primary point of contact for all matters relating to this Agreement; (c) review and provide feedback on all deliverables within the timeframes specified herein or as otherwise agreed by the Parties; (d) make timely payments in accordance with the payment terms set forth in Article 5; (e) comply with all Applicable Laws in its use of the Services and deliverables; and (f) not use the Services or deliverables for any unlawful purpose or in any manner inconsistent with this Agreement.

3.2. Counterparty Obligations

The Counterparty shall: (a) perform the Services in a professional and workmanlike manner, in accordance with industry standards and best practices; (b) comply with all Applicable Laws, the Company's policies and procedures, and any directions reasonably given by the Company's designated representative; (c) maintain accurate and complete records of all work performed and expenses incurred; (d) promptly notify the Company of any issues, delays, or risks that could affect the timely or satisfactory performance of the Services; (e) ensure that all personnel assigned to perform the Services are suitably qualified, trained, and experienced; and (f) cooperate fully with the Company in any audits, reviews, or inspections relating to the performance of the Services.

3.3. Performance Standards

The Counterparty shall perform the Services in accordance with the performance standards, service levels, and quality metrics specified in Schedule A. Failure to meet such standards shall constitute a material breach of this Agreement, entitling the Company to exercise its remedies under Article 4, including but not limited to termination for cause, reduction of fees, and claims for damages.

ARTICLE 4

TERM AND TERMINATION

4.1. Term

This Agreement shall commence on the Effective Date and shall continue for the initial term specified in the recitals above, unless earlier terminated in accordance with this Article 4. Thereafter, this Agreement shall automatically renew for successive one (1) year periods

unless either Party gives written notice of non-renewal at least ninety (90) days prior to the expiration of the then-current term.

4.2. Termination for Convenience

Either Party may terminate this Agreement for convenience upon ninety (90) days' prior written notice to the other Party. In the event of termination for convenience by the Company, the Company shall pay the Counterparty for all Services performed and expenses incurred up to the effective date of termination. In the event of termination for convenience by the Counterparty, the Counterparty shall complete all work in progress and transition all materials and knowledge to the Company.

4.3. Termination for Cause

Either Party may terminate this Agreement for cause upon thirty (30) days' prior written notice to the other Party, specifying the breach, if the other Party materially breaches any provision of this Agreement and fails to cure such breach within such thirty (30) day period. Immediate termination for cause shall be permitted in the event of: (a) insolvency, bankruptcy, or winding up of the other Party; (b) assignment of the other Party's assets for the benefit of creditors; (c) attachment or seizure of a substantial portion of the other Party's assets; or (d) commission of fraud, wilful misconduct, or gross negligence by the other Party.

4.4. Effects of Termination

Upon expiration or termination of this Agreement for any reason: (a) all rights and licences granted by either Party to the other Party shall immediately terminate; (b) the Counterparty shall immediately cease all performance of the Services; (c) the Counterparty shall return or destroy all Confidential Information of the Company and provide written certification of such destruction; (d) the Company shall pay the Counterparty for all undisputed Services performed and expenses incurred up to the effective date of termination; (e) the Counterparty shall cooperate with the Company in transitioning the Services to the Company or a replacement vendor; and (f) all provisions that by their nature should survive termination shall survive in accordance with Section 12.10.

ARTICLE 5

COMPENSATION AND PAYMENT

5.1. Fees

In consideration for the Services, the Company shall pay the Counterparty the fees set forth in the Statement of Work or as otherwise agreed in writing by the Parties. All fees are exclusive of applicable taxes, including but not limited to Goods and Services Tax (GST), which shall be borne by the Company in addition to the fees.

5.2. Invoicing

The Counterparty shall submit invoices to the Company on a monthly basis, within five (5) Business Days of the end of each month. Each invoice shall include: (a) a detailed description of the Services performed; (b) the number of hours worked and the applicable hourly rates, or the fixed fee for milestone deliverables; (c) itemised expenses incurred with supporting documentation; and (d) the applicable GST registration number and tax amounts.

5.3. Payment Terms

The Company shall pay all properly submitted invoices within thirty (30) days of receipt. Late payments shall incur interest at the rate of one and one-half percent (1.5%) per month, or the maximum rate permitted by Applicable Law, whichever is lower. The Company may dispute any invoice in good faith by providing written notice to the Counterparty within fifteen (15) days of receipt, specifying the basis for the dispute. The Parties shall cooperate in good faith to resolve any disputed amounts promptly.

5.4. Set-off and Deduction

The Company shall have the right to set off against any amounts payable to the Counterparty under this Agreement any amounts owed by the Counterparty to the Company, including but not limited to damages, liquidated damages, or other claims arising from the Counterparty's breach of this Agreement.

5.5. Audit Rights

The Company shall have the right, upon reasonable notice and no more than once per calendar year, to audit the Counterparty's records relating to the Services and fees charged hereunder. Such audit shall be conducted during normal business hours and at the Company's expense, unless the audit reveals an overcharge of more than five percent (5%), in which case the Counterparty shall bear the cost of the audit and shall promptly refund the overcharged amount with interest.

ARTICLE 6

CONFIDENTIALITY AND DATA PROTECTION

6.1. Confidentiality Obligations

Each Party agrees to hold all Confidential Information of the other Party in strict confidence and not to disclose such Confidential Information to any Third Party without the prior written consent of the Disclosing Party, except as expressly permitted herein. The Receiving Party shall use the Confidential Information solely for the purpose of exercising its rights and performing its obligations under this Agreement. The Receiving Party shall protect the Confidential Information with at least the same degree of care it uses to protect its own confidential information of like importance, but in no event less than reasonable care.

6.2. Permitted Disclosures

The Receiving Party may disclose Confidential Information to its employees, contractors, and advisors who have a need to know such information for the purpose of performing obligations or exercising rights under this Agreement, provided that such persons are bound by confidentiality obligations no less protective than those set forth herein. The Receiving Party may also disclose Confidential Information as required by Applicable Law, regulation, or court order, provided that the Receiving Party gives the Disclosing Party prompt written notice of such requirement (to the extent permitted by law) and cooperates with the Disclosing Party in seeking a protective order or other appropriate remedy.

6.3. Data Protection

The Counterparty shall process all Personal Data in accordance with the Digital Personal Data Protection Act, 2023, and all other Applicable Laws relating to data protection and privacy. The Counterparty shall implement and maintain appropriate technical and organisational security measures as specified in Schedule C. The Counterparty shall not process Personal Data for any purpose other than as necessary to perform its obligations under this Agreement, and shall not transfer Personal Data outside India without the Company's prior written consent and compliance with all Applicable Laws.

6.4. Return of Confidential Information

Upon expiration or termination of this Agreement, or upon the Disclosing Party's written request, the Receiving Party shall promptly return or destroy all Confidential Information of the Disclosing Party and provide written certification of such destruction, except for copies retained in accordance with standard backup and archival procedures or as required by Applicable Law.

6.5. Survival

The obligations set forth in this Article 6 shall survive the expiration or termination of this Agreement for a period of five (5) years, or, with respect to trade secrets, for so long as such information remains a trade secret under Applicable Law.

ARTICLE 7

INTELLECTUAL PROPERTY RIGHTS

7.1. Company IP

All Intellectual Property Rights in and to the Company's existing technology, software, data, trademarks, and other materials shall remain the exclusive property of the Company. The Counterparty shall not acquire any right, title, or interest in any Company IP except as expressly granted herein.

7.2. Counterparty IP

All Intellectual Property Rights in and to the Counterparty's pre-existing technology, software, tools, methodologies, and other materials shall remain the exclusive property of the Counterparty. The Company shall not acquire any right, title, or interest in any Counterparty IP except as expressly granted herein.

7.3. Work Product

All work product, deliverables, inventions, discoveries, improvements, and modifications created or developed by the Counterparty in the performance of the Services, whether or not patentable, copyrightable, or otherwise protectable ('Work Product'), shall be the sole and exclusive property of the Company. The Counterparty hereby irrevocably assigns to the Company all right, title, and interest in and to the Work Product, including all Intellectual Property Rights therein. The Counterparty shall execute all documents and take all actions reasonably requested by the Company to perfect the Company's ownership of the Work Product.

7.4. Licence Grants

The Counterparty hereby grants to the Company a perpetual, irrevocable, worldwide, royalty-free, fully paid-up, non-exclusive licence, with the right to sublicense through multiple tiers, to use, reproduce, modify, adapt, publish, translate, create derivative works from,

distribute, perform, and display the Counterparty's pre-existing technology and tools to the extent incorporated into the Work Product. The Company hereby grants to the Counterparty a limited, non-exclusive, non-transferable, royalty-free licence to use the Company's IP solely as necessary to perform the Services during the Term.

7.5. Moral Rights

To the extent permitted by Applicable Law, the Counterparty hereby waives any moral rights or droit moral that it may have in the Work Product, and agrees not to institute, support, maintain, or permit any action or claim on the grounds that any use of the Work Product infringes the Counterparty's moral rights.

ARTICLE 8

REPRESENTATIONS AND WARRANTIES

8.1. Mutual Representations

Each Party represents and warrants to the other Party that: (a) it is duly organised, validly existing, and in good standing under the laws of the jurisdiction of its incorporation or formation; (b) it has the full power and authority to enter into this Agreement and to perform its obligations hereunder; (c) the execution, delivery, and performance of this Agreement have been duly authorised by all necessary corporate or other organisational action; (d) this Agreement constitutes a legal, valid, and binding obligation of such Party, enforceable against it in accordance with its terms, subject to applicable bankruptcy, insolvency, reorganisation, moratorium, or similar laws affecting creditors' rights generally and general principles of equity; and (e) the execution, delivery, and performance of this Agreement does not and will not conflict with, violate, or result in a breach of any agreement, instrument, judgment, order, decree, or law to which it is a party or by which it is bound.

8.2. Company Representations

The Company represents and warrants that: (a) it owns or has valid licences to all Intellectual Property Rights necessary for the performance of its obligations under this Agreement; (b) it has complied and shall continue to comply with all Applicable Laws, including but not limited to labour laws, tax laws, environmental laws, and data protection laws; (c) it maintains adequate insurance coverage, including but not limited to general liability insurance, professional indemnity insurance, and cyber liability insurance, with reputable insurers and in amounts customary for companies of similar size and nature; (d) all financial statements and

representations made by the Company to the Counterparty are true, accurate, and complete in all material respects; and (e) it has disclosed to the Counterparty all material facts and circumstances that could reasonably be expected to affect the Counterparty's decision to enter into this Agreement.

8.3. Counterparty Representations

The Counterparty represents and warrants that: (a) it possesses the necessary qualifications, expertise, experience, and resources to perform the Services in a professional and workmanlike manner, in accordance with industry standards and best practices; (b) all personnel assigned to perform the Services shall be suitably qualified, trained, and experienced, and shall comply with all Applicable Laws and the Company's policies and procedures; (c) the Services and all deliverables provided under this Agreement shall be original works, shall not infringe upon the Intellectual Property Rights of any Third Party, and shall be free from any viruses, malware, spyware, or other harmful code; (d) it has obtained and shall maintain all necessary licences, permits, registrations, and approvals required for the performance of the Services; and (e) it shall comply with all Applicable Laws, including but not limited to tax laws, labour laws, and data protection laws, in the performance of its obligations under this Agreement.

8.4. Disclaimer

EXCEPT AS EXPRESSLY SET FORTH IN THIS AGREEMENT, NEITHER PARTY MAKES ANY REPRESENTATIONS OR WARRANTIES OF ANY KIND, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE, INCLUDING BUT NOT LIMITED TO ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, NON-INFRINGEMENT, OR ACCURACY. THE COMPANY DOES NOT WARRANT THAT THE SERVICES WILL BE UNINTERRUPTED, TIMELY, SECURE, OR ERROR-FREE.

ARTICLE 9

INDEMNIFICATION AND LIMITATION OF LIABILITY

9.1. Indemnification by Counterparty

The Counterparty shall indemnify, defend, and hold harmless the Company and its Affiliates, officers, directors, employees, agents, and representatives from and against any and all claims, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising

out of or relating to: (a) the Counterparty's breach of any representation, warranty, or obligation under this Agreement; (b) the Counterparty's negligence or wilful misconduct; (c) any claim that the Services or deliverables infringe or misappropriate the Intellectual Property Rights of any Third Party; (d) any claim by a Third Party arising from the Counterparty's employment practices, tax obligations, or regulatory compliance; or (e) any Data Breach or other security incident caused by the Counterparty's acts or omissions.

9.2. Indemnification by Company

The Company shall indemnify, defend, and hold harmless the Counterparty from and against any and all claims, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to: (a) the Company's breach of any representation, warranty, or obligation under this Agreement; (b) the Company's negligence or wilful misconduct; or (c) any claim that the Company's materials, data, or instructions furnished to the Counterparty infringe or misappropriate the Intellectual Property Rights of any Third Party.

9.3. Indemnification Procedure

The indemnified Party shall promptly notify the indemnifying Party in writing of any claim for which indemnification is sought, cooperate reasonably with the indemnifying Party in the defence of such claim, and allow the indemnifying Party to control the defence and settlement thereof. The indemnifying Party shall not settle any claim in a manner that adversely affects the indemnified Party's rights without the indemnified Party's prior written consent, which shall not be unreasonably withheld or delayed.

9.4. Limitation of Liability

EXCEPT FOR BREACHES OF ARTICLE 6 (CONFIDENTIALITY), ARTICLE 7 (INTELLECTUAL PROPERTY), OR A PARTY'S INDEMNIFICATION OBLIGATIONS UNDER SECTION 9.1 OR 9.2, IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER PARTY FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, PUNITIVE, OR EXEMPLARY DAMAGES, INCLUDING BUT NOT LIMITED TO LOSS OF PROFITS, LOSS OF REVENUE, LOSS OF DATA, LOSS OF GOODWILL, BUSINESS INTERRUPTION, OR COST OF SUBSTITUTE SERVICES, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. THE TOTAL AGGREGATE LIABILITY OF EITHER PARTY UNDER THIS AGREEMENT SHALL NOT EXCEED THE TOTAL AMOUNT PAID OR PAYABLE BY THE COMPANY TO THE COUNTERPARTY UNDER THIS AGREEMENT IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO LIABILITY, EXCEPT THAT SUCH CAP

SHALL NOT APPLY TO CLAIMS ARISING FROM FRAUD, GROSS NEGLIGENCE, WILFUL MISCONDUCT, OR BREACH OF CONFIDENTIALITY OR INTELLECTUAL PROPERTY OBLIGATIONS.

ARTICLE 10

FORCE MAJEURE

10.1. Excused Performance

Neither Party shall be liable to the other Party for any failure or delay in the performance of its obligations under this Agreement (other than obligations to make payments) to the extent such failure or delay is caused by a Force Majeure Event. Upon the occurrence of a Force Majeure Event, the affected Party shall promptly notify the other Party in writing, describing the nature of the Force Majeure Event, the anticipated duration of the delay, and the obligations affected thereby.

10.2. Mitigation

The affected Party shall use commercially reasonable efforts to mitigate the effects of the Force Majeure Event, to resume performance of its obligations as soon as practicable, and to minimise the duration and impact of the delay. The affected Party shall provide the other Party with regular updates regarding the status of the Force Majeure Event and the efforts being made to resume performance.

10.3. Termination for Extended Force Majeure

If a Force Majeure Event continues for a period of more than sixty (60) consecutive days, either Party may terminate this Agreement upon written notice to the other Party, without liability to the other Party, except for obligations that accrued prior to the Force Majeure Event and obligations that survive termination pursuant to Section 12.10. Upon such termination, the Company shall pay the Counterparty for all Services performed and expenses incurred up to the date of termination.

ARTICLE 11

DISPUTE RESOLUTION

11.1. Good Faith Negotiation

In the event of any dispute, controversy, or claim arising out of or relating to this Agreement, the Parties shall first attempt in good faith to resolve the dispute through informal negotiation between senior executives of the Parties who have authority to settle the dispute. Either Party may initiate such negotiation by providing written notice to the other Party describing the dispute and requesting a meeting. The Parties shall meet within fifteen (15) Business Days of such notice and shall negotiate in good faith for a period of not less than thirty (30) days.

11.2. Mediation

If the Parties are unable to resolve the dispute through good faith negotiation within thirty (30) days, either Party may, by written notice to the other Party, refer the dispute to mediation in accordance with the Mediation and Conciliation Rules of the Indian Institute of Arbitration and Mediation. The mediation shall be conducted in English, in Mumbai, India, by a mediator appointed by mutual agreement of the Parties. If the Parties fail to agree on the appointment of the mediator within fifteen (15) days from the date of referral to mediation, the mediator shall be appointed by the Indian Institute of Arbitration and Mediation. The costs of mediation shall be borne equally by the Parties.

11.3. Arbitration

If the dispute is not resolved through mediation within sixty (60) days from the date of referral to mediation, either Party may refer the dispute to binding arbitration in accordance with Section 12.6 (Governing Law and Jurisdiction). The arbitration proceedings shall be confidential, and neither Party shall disclose the existence, content, or results of any arbitration proceeding to any Third Party without the prior written consent of the other Party, except as required by Applicable Law or to enforce the arbitral award.

11.4. Injunctive Relief

Notwithstanding the foregoing, either Party may seek interim or conservatory measures, including injunctive relief, attachment, or other equitable remedies, from a court of competent jurisdiction to prevent irreparable harm, preserve the status quo, or enforce confidentiality obligations, without prejudice to the Parties' agreement to resolve the underlying dispute through arbitration.

11.5. Costs and Attorneys' Fees

In any arbitration or litigation arising out of or relating to this Agreement, the prevailing Party shall be entitled to recover from the non-prevailing Party all reasonable costs, expenses, and

attorneys' fees incurred in connection with such proceedings, in addition to any other relief granted.

ARTICLE 12

GENERAL PROVISIONS

12.1. Entire Agreement

This Agreement, together with all Schedules and Exhibits hereto, constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior and contemporaneous agreements, proposals, understandings, negotiations, and discussions, whether oral or written, between the Parties relating to such subject matter. No amendment, modification, or waiver of any provision of this Agreement shall be effective unless in writing and signed by authorised representatives of both Parties.

12.2. Severability

If any provision of this Agreement is held by a court of competent jurisdiction to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable, or if such modification is not possible, such provision shall be severed from this Agreement, and the remaining provisions shall continue in full force and effect. The Parties agree to negotiate in good faith to replace any invalid, illegal, or unenforceable provision with a valid, legal, and enforceable provision that achieves the closest economic and commercial effect to the original provision.

12.3. Waiver

No waiver of any provision of this Agreement shall be effective unless in writing and signed by the Party against whom the waiver is sought to be enforced. No failure or delay by either Party in exercising any right, power, or remedy under this Agreement shall operate as a waiver thereof, nor shall any single or partial exercise of any such right, power, or remedy preclude any other or further exercise thereof or the exercise of any other right, power, or remedy.

12.4. Assignment

Neither Party may assign, transfer, or novate this Agreement or any of its rights or obligations hereunder without the prior written consent of the other Party, except that either Party may assign this Agreement to an Affiliate or to a successor in connection with a merger, acquisition, corporate reorganisation, or sale of all or substantially all of its assets, provided

that the assignee agrees in writing to be bound by the terms of this Agreement. Any purported assignment in violation of this Section shall be null and void.

12.5. Notices

All notices, requests, demands, claims, and other communications hereunder shall be in writing and shall be deemed to have been duly given (a) when delivered by hand (with written confirmation of receipt), (b) when received by the addressee if sent by a nationally recognised overnight courier (receipt requested), (c) on the date sent by email (with confirmation of transmission) if sent during normal business hours of the recipient, and on the next business day if sent after normal business hours, or (d) on the third business day after the date mailed, by certified or registered mail, return receipt requested, postage prepaid. All notices shall be sent to the addresses set forth above or to such other address as a Party may designate by notice given in accordance with this Section.

12.6. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of India, without regard to its conflict of laws principles. Any dispute, controversy, or claim arising out of or relating to this Agreement, including the formation, interpretation, breach, termination, or validity thereof, shall be resolved exclusively through arbitration in accordance with the Arbitration and Conciliation Act, 1996, as amended from time to time. The arbitration shall be conducted in English, in Mumbai, India, by a sole arbitrator appointed by mutual agreement of the Parties. If the Parties fail to agree on the appointment of the arbitrator within thirty (30) days from the date of referral to arbitration, the arbitrator shall be appointed by the Chief Justice of the Bombay High Court or any person or institution designated by him. The award of the arbitrator shall be final and binding on the Parties, and judgment upon the award may be entered in any court having jurisdiction thereof. The Parties hereby irrevocably submit to the exclusive jurisdiction of the courts at Mumbai, India, for the purposes of enforcing any arbitral award.

12.7. Counterparts

This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument. Electronic signatures and scanned copies transmitted by email or other electronic means shall have the same legal effect as original signatures and originals for all purposes.

12.8. Third Party Beneficiaries

Except as expressly provided herein, nothing in this Agreement, express or implied, is

intended to or shall confer upon any Third Party any legal or equitable right, benefit, or remedy of any nature whatsoever under or by reason of this Agreement.

12.9. Relationship of Parties

Nothing in this Agreement shall be construed as creating an agency, partnership, joint venture, fiduciary, or employment relationship between the Parties. The Counterparty is an independent contractor and neither Party has the authority to bind the other Party or to incur any obligation on behalf of the other Party except as expressly authorised in writing by such other Party.

12.10. Survival

All provisions of this Agreement that by their nature should survive termination or expiration of this Agreement, including but not limited to Articles 6 (Confidentiality), 7 (Intellectual Property), 9 (Indemnification), 11 (Dispute Resolution), and this Article 12 (General Provisions), shall survive such termination or expiration for the periods specified therein or, if no period is specified, indefinitely.

12.11. Export Control

The Parties shall comply with all applicable export control laws and regulations of India and any other relevant jurisdiction, including but not limited to the Weapons of Mass Destruction and their Delivery Systems (Prohibition of Unlawful Activities) Act, 2005, and shall not export, re-export, or transfer any goods, software, technology, or technical data in violation of such laws and regulations.

12.12. Anti-Bribery and Anti-Corruption

Each Party represents and warrants that it has not and shall not, in connection with the performance of its obligations under this Agreement, directly or indirectly, offer, pay, promise to pay, or authorise the payment of any money, gift, or anything of value to any government official, political party, or candidate for public office for the purpose of influencing any act or decision of such person or entity in order to obtain or retain business or secure any improper advantage. Each Party shall comply with all applicable anti-bribery and anti-corruption laws, including but not limited to the Prevention of Corruption Act, 1988.

SCHEDULE A

DEFINED TERMS AND SPECIFICATIONS

A.1 The following specifications and technical requirements apply to all Services performed under this Agreement:

A.2 All deliverables shall conform to the quality standards set forth in ISO 9001:2015 and shall be subject to quality assurance review by the Company.

A.3 The Counterparty shall maintain comprehensive documentation of all Services performed, including but not limited to design documents, source code, test plans, test results, user manuals, and maintenance guides.

A.4 All software deliverables shall be developed using industry-standard coding conventions, shall be properly commented, and shall include unit tests achieving a minimum code coverage of eighty percent (80%).

A.5 The Counterparty shall provide the Company with access to all project management tools, version control systems, and collaboration platforms used in the performance of the Services.

A.6 All hardware and equipment used in the performance of the Services shall comply with relevant BIS (Bureau of Indian Standards) certifications and shall be maintained in good working condition.

A.7 The Counterparty shall ensure that all personnel assigned to the project have signed appropriate confidentiality and non-disclosure agreements.

A.8 The Counterparty shall conduct background verification checks on all personnel who will have access to the Company's Confidential Information or systems.

SCHEDULE B

INSURANCE AND COMPLIANCE REQUIREMENTS

B.1 The Counterparty shall maintain, at its own expense, the following insurance coverage throughout the Term:

- (a) Comprehensive General Liability Insurance with minimum coverage of INR 5,00,00,000 (Rupees Five Crores) per occurrence and INR 10,00,00,000 (Rupees Ten Crores) in aggregate;
- (b) Professional Indemnity / Errors and Omissions Insurance with minimum coverage of INR 5,00,00,000 (Rupees Five Crores) per claim and in aggregate;
- (c) Cyber Liability Insurance with minimum coverage of INR 10,00,00,000 (Rupees Ten Crores) per claim and in aggregate;
- (d) Workers' Compensation Insurance as required by Applicable Law; and
- (e) Directors and Officers Liability Insurance with minimum coverage of INR 2,50,00,000 (Rupees Two Crores and Fifty Lakhs).

B.2 The Counterparty shall provide the Company with certificates of insurance evidencing the coverage required herein within fifteen (15) days of the Effective Date and annually thereafter.

B.3 The Counterparty shall comply with all applicable statutory and regulatory requirements, including but not limited to GST registration and compliance, PF and ESI contributions, professional tax, and all other applicable labour and employment laws.

B.4 The Counterparty represents that it is not debarred, suspended, or otherwise ineligible to participate in government contracts, and that it has not been convicted of any criminal offence involving fraud, dishonesty, or breach of trust.

B.5 The Counterparty shall promptly notify the Company of any material change in its insurance coverage, financial condition, or legal status that could affect its ability to perform its obligations under this Agreement.

SCHEDULE C

DATA PROCESSING AND SECURITY STANDARDS

C.1 The Counterparty shall implement and maintain appropriate technical and organisational measures to protect Personal Data against unauthorised or unlawful processing, accidental loss, destruction, damage, alteration, or disclosure.

C.2 Such measures shall include, at a minimum:

- (a) Encryption of Personal Data at rest using AES-256 or equivalent encryption standards;
- (b) Encryption of Personal Data in transit using TLS 1.3 or equivalent protocols;
- (c) Multi-factor authentication for all access to systems containing Personal Data;
- (d) Regular security audits and vulnerability assessments, conducted at least quarterly;
- (e) Implementation of intrusion detection and prevention systems;
- (f) Regular backup and disaster recovery procedures, with backups stored in geographically separate locations; and
- (g) Comprehensive access controls and logging mechanisms.

C.3 The Counterparty shall notify the Company of any Data Breach within twenty-four (24) hours of discovery and shall cooperate fully with the Company in investigating and remediating such breach.

C.4 The Counterparty shall ensure that all sub-processors engaged in the processing of Personal Data are bound by written agreements imposing data protection obligations substantially similar to those set forth in this Agreement.

C.5 Upon termination or expiration of this Agreement, the Counterparty shall, at the Company's election, return or securely destroy all Personal Data and provide written certification of such destruction.

C.6 The Counterparty shall maintain records of all processing activities carried out on behalf of the Company and shall make such records available to the Company upon request.

EXHIBIT I

SIGNATURE PAGE AND EXECUTION FORMALITIES

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date first written above.

FOR AND ON BEHALF OF ACME MANUFACTURING PVT LTD

Signature: _____

Name: _____

Title: _____

Date: _____

Witness:

Signature: _____

Name: _____

Address: _____

FOR AND ON BEHALF OF INNOTECH SOLUTIONS PVT LTD

Signature: _____

Name: _____

Title: _____

Date: _____

Witness:

Signature: _____

Name: _____

Address: _____